

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407333	KIM VS FCA US, LLC.	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT OF PHILIP KIM

Tentative Ruling: No tentative ruling. Motion continued to 8.31.26. Parties failed to comply with the court's orders on 8.03.26. Sanctions imposed in the amount of \$250 as to Plaintiff and Defendants, payable by 8.27.26. Failure to comply with the orders will result in further sanctions or vacating of the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505403	BLOCH VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEYS FEES BY LYNSEY BLOCH

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Here, Plaintiff accepted Defendant's C.C.P. § 998 offer, which states that Plaintiff are the prevailing party and that Defendant shall pay Plaintiff's attorney fees, costs, and expenses upon separate motion. (Hoddick Decl., ¶ 5.)

Attorney Fees:

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.)

Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Here, the procedural history includes only a Complaint, Answer, joint stipulation for a protective order, and Notice of Settlement. There is no evidence that the parties engaged in any law and motion, or that the case involved anything more complicated than a routine Song-Beverly claim.

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hour spent on the case. (*Ibid.*) Lodestar requires the court